

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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Xavier Vasquez,

:
Index Number:
Date Purchased:
:
Date Filed:

Plaintiff

:
SUMMONS

-against-

:

City of New York, New York City Police Department,
New York City Detective Michael Rama, Shield 709, of
the SVU Unit, New York City Detective, Lisette :
Gutierrez, Shield 5336, of the SVU Unit, New York City
Detective Lazaro Suarez-Villamil, Shield 5606 of the SVU
Unit, New York City Luitenant Adam Laboy of the :
SVU Unit, New York City Crime Scene Unit Investigator
Detective John Entenmann and New York City Crime Scene
Unit Investigator Hernandez, :Plaintiff's residence is:
:
1829 Lexington Avenue
Apartment 13A
Bronx, NY 10029

Defendants

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TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to Answer the Verified Complaint in this action and serve a copy of your answer, or if the Verified Complaint is not served with this Summons to serve a notice of Appearance on the Plaintiffs attorney within twenty (20) days after the service of this Summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this Summons is not personally delivered to you within the State of New York) and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Verified Complaint.

The basis of venue designated is that the incident occurred in New York County.

Dated: March 12, 2014
New York, NY

Yours, etc.,

LAW OFFICES OF JASON A. STEINBERGER, LLC
Attorney for Plaintiff
505 Eighth Avenue
Suite 701
New York, NY 10018
(646) 256-1007

To: City of New York

New York City Police Department

New York City Detective Michael Rama, Shield 709, of the SVU Unit

New York City Detective, Lisette Gutierrez, Shield 5336, of the SVU Unit

New York City Detective Lazaro Suarez-Villamil, Shield 5605 of the SVU Unit

New York City Luitenant Adam Laboy of the SVU Unit

New York City Crime Scene Unit Investigator Detective John Entenmann

New York City Crime Scene Unit Investigator Hernandez

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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Xavier Vasquez, :

Plaintiff, :

: VERIFIED COMPLAINT
-against- :

City of New York, New York City Police Department,
New York City Detective Michael Rama, Shield 709, of
the SVU Unit, New York City Detective, Lisette :
Gutierrez, Shield 5336, of the SVU Unit, New York City
Detective Lazaro Suarez-Villamil of the SVU Unit and
New York City Luitenant Adam Laboy of the :
SVU Unit, New York City Crime Scene Unit Investigator
Detective John Entenmann and New York City Crime
Scene Unit Investigator Hernandez, :

Defendants. :

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Plaintiff, by and through his attorney, JASON A. STEINBERGER, Esq, for his complaint,
alleges upon information and belief as follows:

STATEMENT OF FACTS

1. That at all times hereinafter mentioned, Plaintiff Xavier Vasquez, (hereinafter referred to as “VASQUEZ”) resides in Bronx County, State of New York.
2. That at all times hereinafter mentioned, New York City Detective Michael Rama, (hereinafter referred to as “RAMA”) was employed by the New York City Police Department.
3. That at all times hereinafter mentioned, New York City Detective Lisette Gutierrez, (hereinafter referred to as “GUTIERREZ”) was employed by the New York City Police Department.

4. That at all times hereinafter mentioned, New York City Detective Lazaro Suarez-Villamil, (hereinafter referred to as "SUAREZ-VILLAMIL") was employed by the New York City Police Department.

5. That at all times hereinafter mentioned, New York City Luitenant Adam Laboy, (hereinafter referred to as "LABOY") was employed by the New York City Police Department

6. That at all times hereinafter mentioned, New York City Crime Scene Unit Investigator Detective John Entenmann, (hereinafter referred to as "ENTENMANN") was employed by the New York City Police Department.

7. That at all times hereinafter mentioned, New York City Crime Scene Unit Investigator Detective Hernandez, (hereinafter referred to as "HERNANDEZ") was employed by the New York City Police Department.

8. That at all times hereinafter mentioned, Defendant City of New York, is a municipal corporation organized and existing under the laws of the State of New York, with a principal place of business located at 1 Centre Street, County of New York State of New York.

9. That at all times hereinafter mentioned, Defendant New York City Police Department, is an agency created and maintained by the above municipal government.

10. On or before about April 25, 2013 notice required by Municipal Law 50-E was given to City of New York, by personal service. Said notice set forth the facts underlying Plaintiffs' claim against the City of New York, and its agents and employees. To date, no answer has been received by Plaintiff and no compensation has been offered by the City of New York.

11. On or about August 21, 2013 a hearing required by Municipal Law 50-H was conducted. At said hearing, Plaintiffs testified and set forth the facts underlying Plaintiffs' claim against the City of New York and its agents and employees. To date, no answer has been received by

Plaintiff and no compensation has been offered by the City of New York in response to this claim, and more than thirty (30) days have elapsed.

12. That on or about January 2 2011, a woman who was working as an escort, (hereinafter referred to "ESCORT") contacted the New York City Police Department and reported that she had been raped in that a man placed a black handgun to her head and forced her to engage in oral, vaginal and anal sex.

13. That on or about January 2, 2011, ESCORT presented to the emergency room at Metropolitan Hospital.

14. That on or about January 2, 2011, the attending physician Hossein Kalantari, observed that ESCORT presented with no physical trauma or bruising.

15. That on or near, January 2, 2011 RAMA, a New York City Police Detective, was assigned to investigate ESCORT's complaint.

16. That on and between January 2, 2011 through April 11, 2013, GUTIERREZ, SUAREZ-VILLAMIL, LABOY, ENTENMANN and HERNANDEZ assisted RAMA in his investigation and prosecution of Plaintiff.

17. That during RAMA's investigation which included conversations with ESCORT, ESCORT told RAMA that while performing oral sex on the man who raped her, she was able to retrieve a pubic hair from the man.

18. That ESCORT kept the pubic hair which she retrieved from the man that raped her and provided the pubic hair to RAMA.

19. That on or about January 2, 2011, ENTENMANN and HERNANDEZ were assigned as Crime Scene Investigators and assisted with RAMA's investigation.

20. That on or about January 2, 2011, RAMA handed the pubic hair to ENTENMANN for the purposes of determining the DNA profile of the man from whom the pubic hair came.

21. That on or about ENTENMANN filed a Request for Laboratory Examination for the purposes of determining the DNA profile of the man from whom the pubic hair came.

22. That on or about January 2, 2011, a dried secretion was taken from ESCORT's neck and that the DNA profile for said secretion matched the DNA profile of Plaintiff.

23. That on October 27, 2011, at approximately 9:00 AM in the vicinity of 1829 Lexington Avenue, New York, NY, Plaintiff was taken into custody for suspicion of having committed the rape of ESCORT.

24. That after Plaintiff was taken into custody, he was placed in a lineup and that ESCORT did not identify Plaintiff as the man who raped her.

25. That at no time after ESCORT failed to identify Plaintiff as her attacker, did RAMA, GUTIERREZ, SUAREZ-VILLAMIL, LABOY, ENTENMANN or HERNANDEZ contact the Office of the Chief Medical Examiner (hereinafter referred to as "OCME") for the DNA profile from the pubic hair that ESCORT claimed was removed from her attacker.

26. That at no time after ESCORT failed to identify Plaintiff as her attacker, did RAMA, GUTIERREZ, SUAREZ-VILLAMIL, LABOY, ENTENMANN or HERNANDEZ go to the OCME to obtain the DNA profile of the pubic hair that ESCORT claimed was removed from her attacker.

27. That on or about October 27, 2011, despite not having been identified as ESCORT's attacker, Plaintiff was placed under arrest.

28. That on or about October 27, 2011, Plaintiff was placed in a New York City police precinct cell, with other males, for several hours.

29. That while inside of the New York City police precinct cell Plaintiff he was denied access to water and bathrooms.

30. That after being held for several hours, Plaintiff was then removed to New York County Central Booking, located at 100 Centre Street, New York, NY.

31. That while at New York County Central Booking, Plaintiff was held in a cell with other males for several hours.

32. That while at New York County Central Booking, Plaintiff was held in a cell with no access to water or a working bathroom.

33. That on October 28, 2011, Plaintiff was arraigned in New York County Criminal Court on docket 2011NY077628, for Rape in the First Degree, a class B felony and other related charges.

34. That during Plaintiff's arraignment, bail was set at one hundred, fifty thousand dollars (\$150,000) and the case was adjourned.

35. That Plaintiff was removed the Manhattan Detention Center.

36. That at no time after Plaintiff's arraignment did RAMA, GUTIERREZ, SUAREZ-VILLAMIL, LABOY, ENTENMANN or HERNANDEZ contact the OCME to obtain the DNA profile from the pubic hair that ESCORT claimed was removed from her attacker.

37. That at no time after Plaintiff's arraignment did RAMA, GUTIERREZ, SUAREZ-VILLAMIL, LABOY, ENTENMANN or HERNANDEZ go to the OCME to obtain the DNA profile of the pubic hair that ESCORT claimed was removed from her attacker.

38. That on or near November 2, 2011, Plaintiff was indicted on the charges of Rape in the First Degree, a class B Felony and related charges.

39. That on January 9, 2012, Plaintiff was removed to the George Martin Detention Center and that he remained there, aside from visits to court until December 31, 2012.

40. That on and between October 28, 2011 through December 31, 2012, Plaintiff remained incarcerated.

41. That on and between October 28, 2011 through December 31, 2012, Plaintiff made several court appearances.

42. That on or about December 31, 2012, the pubic hair that was taken from ESCORT's attacker was tested and the DNA profile of the pubic hair did not match Plaintiff.

43. On April 11, 2013, the case against Plaintiff was dismissed upon application of the New York County District Attorney.

**AS AND FOR A FIRST CAUSE OF ACTION AGAINST THE CITY OF NEW YORK
AND NEW YORK CITY POLICE DEPARTMENT**

44. Plaintiff repeats, reiterates and realleges the allegations contained in paragraphs 1 through 43, as if more fully stated herein at length.

45. That Defendants acted with actual malice toward Plaintiff and with willful and wanton indifference to and deliberate disregard for the statutory and constitutional rights of the Plaintiff.

46. That the actions of the Defendants constituted unreasonable deprivation of liberty without due process of law.

47. That as a result of the actions by Defendants, Plaintiff was traumatized and fears for his physical safety when he sees and encounters members of the New York City Police Department from that day and onward.

48. That as a result of the Defendant's actions, Plaintiff was unable to maintain his relationship with his girlfriend in that he was unable to receive love, companionship, affection, society, sexual relations, moral support and solace to from her.

49. That as a result of the Defendant's actions, Plaintiff was prevented from enjoying his family in that he was unable to receive love, companionship, affection, society, sexual relations, moral support and solace to from her.

50. That as a result of the Defendant's actions, Plaintiff has been unable to establish stable romantic relationships in that he cannot provide love, companionship, affection, society, sexual relations and moral support to his partners.

51. That as a result of the Defendant's actions, Plaintiff has been unable to sleep.

52. That as a result of the Defendant's actions, Plaintiff missed months of work.

53. That as a result of the Defendant's actions, Plaintiff lost his job.

54. That as a result of the Defendant's actions, Plaintiff hired an attorney to represent him and in doing so, experienced extreme financial hardship.

55. That as a result of the Defendant's actions, Plaintiff sustained damage to his person in the sum within the jurisdiction of the Supreme Court and in excess of all inferior courts.

AS AND FOR A SECOND CAUSE OF ACTION AGAINST CITY OF NEW YORK AND
NEW YORK CITY POLICE DEPARTMENT

56. Plaintiff repeats, reiterates and realleges the allegations contained in paragraphs 1 through 55, as if more fully stated herein at length.

57. The intentional verbal abuse, false arrest and false imprisonment by Defendants violated the rights of Plaintiff as guaranteed by the Fourth, Fifth and Eighth Amendments to the Unites

States Constitution, as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable.

58. Defendants having no lawful authority to arrest Plaintiff did, nevertheless, unlawfully arrest Plaintiff with actual malice toward him and with willful and wanton indifference to and deliberate disregard for his constitutional rights. Thus Plaintiff is entitled to both compensatory and exemplary damages.

AS AND FOR A THIRD CAUSE OF ACTION AS AGAINST THE CITY OF NEW YORK
AND NEW YORK CITY POLICE DEPARTMENT

59. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 58, as if more fully stated herein at length.

60. Defendants conspired to violate Plaintiff's statutory civil rights in violation of 42 U.S.C. sec.1983, et al as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable. Thus Plaintiff is entitled to both compensatory and exemplary damages, as well as attorney's fees.

AS AND FOR A FOURTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK AND
NEW YORK CITY POLICE DEPARTMENT

61. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 60, as if more fully stated herein at length.

62. Plaintiff was verbally abused, falsely arrested and falsely imprisoned by Defendants in a manner that was extreme, outrageous and unjustified and caused Plaintiff to suffer physical and severe emotional distress for which the Defendants are individually liable. The verbal abuse, false arrest and false imprisonment on and of Plaintiff by Defendants were unjustified and done

with actual malice and wanton indifference to and deliberate disregard for human life and the rights of Plaintiff. Plaintiff is thus entitled to compensatory and exemplary damages.

AS AND FOR A FIFTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK AND
NEW YORK CITY POLICE DEPARTMENT

63. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 62, as if more fully stated herein at length.

64. At all times pertinent hereto, DOE was acting within the scope of his employment as an officer of the New York City Police Department and City of New York.

65. The City of New York and New York City Police Department are each liable for compensatory damages under the doctrine of respondeat superior for the intentional torts that DOE committed within the scope of his employment.

AS AND FOR A SIXTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK AND
NEW YORK CITY POLICE DEPARTMENT

66. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 65, as if more fully stated herein at length.

67. The City of New York and New York City Police Department's failure to provide adequate training and supervision to its police officers constitutes a willful and wanton indifference and deliberate disregard for human life and the rights of private citizens, including Plaintiff. Plaintiff is thus entitled to compensatory exemplary damages.

AS AND FOR A SEVENTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK
AND NEW YORK CITY POLICE DEPARTMENT

68. Plaintiff repeats, reiterates and realleges the allegations contained in paragraphs 1 through 67, as if more fully stated herein at length.

69. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted and tolerated the unreasonable detention of Plaintiff.

70. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted the wanton indifference to and deliberate disregard for the statutory and constitutional rights of Plaintiff.

WHEREFORE, Plaintiffs each demand judgment against the Defendants as follows:

On the first cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts;

On the second cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts, together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

On the third cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

On the fourth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of

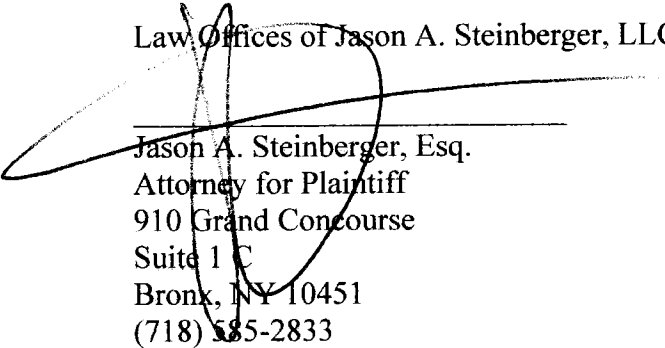
this court and in excess of all inferior courts owing to the Defendants' wanton and willful actions;

On the fifth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts

On the sixth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts.

On the seventh cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts.

Law Offices of Jason A. Steinberger, LLC

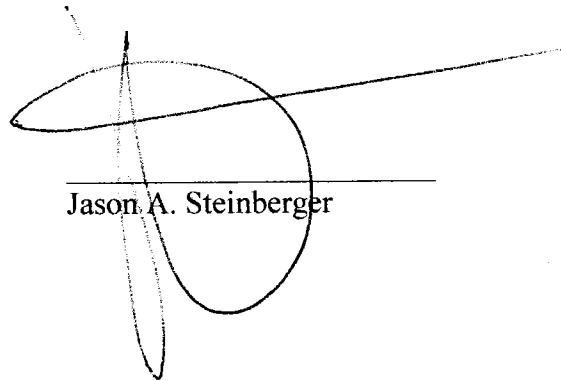


Jason A. Steinberger, Esq.
Attorney for Plaintiff
910 Grand Concourse
Suite 1 C
Bronx, NY 10451
(718) 585-2833

STATE OF NEW YORK COUNTY OF BRONX

The undersigned, an attorney admitted to practice in the State of New York, under penalties of perjury, affirms the following to be true: Affirmant has read the foregoing Complaint and the contents thereof ; the same is true to affirmant's own knowledge, except as to matters therein stated to be alleged on information and belief and as to those matters affirmant believes it to be true; and the reason this verification is made by affirmant and not by the plaintiff is because the plaintiff is not within the county in which your affirmant maintains his principal office. The grounds of affirmant's belief as to all matters not stated upon affirmant's knowledge are communications with the plaintiff, review of records and documents within affirmant's possession.

Affirmed: March 19, 2014



Jason A. Steinberger

Index Number:
SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

XAVIER VASQUEZ

Plaintiff

-against-

CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT POLICE, NEW YORK CITY DETECTIVE MICHAEL RAMA, SHIELD 709, OF THE SVU UNIT, NEW YORK CITY DETECTIVE LISETTE GUTIERREZ, SHIELD 5336, OF THE SVU UNIT, NEW YORK CITY DETECTIVE LAZARO SUAREZ-VILLAMIL, SHIELD 5606, OF THE SVU UNIT, NEW YORK CITY LUITENENT ADAM LABOY OF THE SVU UNIT, NEW YORK CITY CRIME SCENE UNIT INVESTIGATOR DETECTIVE JOHN ENTENMANN AND NEW YORK CITY CRIME SCENE UNIT INVESTIGATOR HERNANDEZ,

Defendant.

SUMMONS and COMPLAINT

LAW OFFICES OF JASON A. STEINBERGER, LLC
910 Grand Concourse, Suite 1C
Bronx, NY 10451

To:
Attorney (s) for Defendant(s)

Service of a copy of the within

is hereby admitted.

Dated:

Attorney(s) for

PLEASE TAKE NOTICE

☐ that the within is a (certified) true copy of
☐ entered in the office of the clerk of the within named Court on

**NOTICE
OF ENTRY**

☐ that an Order of which the within is a true copy will be presented for settlement to the Hon.
NOTICE OF once of the Judges of the within named Court,

SETTLEMENT at
on

200 , at m.

Dated:

JASON A. STEINBERGER, ESQ.
910 Grand Concourse, Suite 1C
Bronx, NY 10451